

representative: In **J xx/xx** (=J 900/85, OJ 1985, 159) and **J ../87** (=J 903/87, OJ 1988, 177) the Legal Board held that the capacity of the **applicant or patent proprietor** to carry out legal transactions relating to his application or patent must be determined in accordance with the relevant **national law** because the interest in the patent application or the patent is an interest in property (see Art. 74 and Art. 2(2) EPC; see also **J 49/92**). On the other hand, **J xx/xx** (=J 900/85, OJ 1985, 159) states that a **uniform standard** of judging legal incapacity of **representatives** shall apply in order to avoid differences in the application of R. 90(1)(c) EPC 1973 (R. 142(1)(c) EPC) depending on the nationality of domicile of the representative.

4.4. Determining legal incapacity of the applicant or patent proprietor for the purpose of Rule 142(1)(a) EPC

In **J ../87** (=J 903/87, OJ 1988, 177) the board ruled that a brief medical certificate attesting that the applicant had been in a state of physical and mental exhaustion and depression, was not sufficient to establish incapacity within the meaning of R. 90(1)(a) EPC 1973 since the certificate said nothing about the seriousness and duration of this condition. Cf. **T. 1680/13**.

In **J 49/92** the Legal Board had no evidence – such as a medical certificate – to suggest that the applicant's health, according to German legal practice, was in such a condition as to exclude the rational exercising of his will, since he had still managed to transfer the fees for the application, even if they had been sent by mistake to the German Patent Office instead of the EPO.

4.5. Determining legal incapacity of the representative for the purpose of Rule 142(1)(c) EPC

The basic consideration for a decision on R. 142(1)(c) EPC is whether the representative concerned was either in a fit mental state to do the work required of him at the material time or whether he lacked the capacity to make rational decisions and to take the necessary actions, see **J xx/xx** (=J 900/85, OJ 1985, 159), **J 7/99**, **J 7/16**. In **J 5/99** the Legal Board stated that that meant carefully weighing up all reliable relevant information. Also indispensable was a reliable medical opinion taking account of all material facts (see also **J 7/16**).

In **J xx/xx** (=J 900/85, OJ 1985, 159) the Legal Board noted that, although there were differences in the national laws of contracting states as to the concept of "legal incapacity" and as to its consequences, there seemed to be a broad agreement that a person of full age was legally incapacitated when he was suffering from such a disturbance of his mind that he was unable to form the necessary voluntary intention to carry out legal transactions which would be binding upon him, e.g. to make valid contracts. Such a disturbance of his mind could be recognised by national law even if it was temporary only (e.g. a disturbance caused by physical injury or by the influence of alcohol or other drugs) or occurred from time to time, as was the case with some mental illnesses in which the patient had lucid intervals. Disturbance of the mind causing legal incapacity was always recognised by law if it was of long duration, a fortiori if it was permanent and irreversible. Since there was a

unified European profession of representatives before the EPO, there should be a uniform standard of judging legal incapacity, in order to avoid differences in the application of R. 90(1)(c) EPC 1973 (R. 142(1)(c) EPC) depending on the nationality or domicile of the representative. The question of determining the legal incapacity of a representative for the purposes of R. 90(1)(c) EPC 1973 (R. 142(1)(c) EPC) was one for the EPO, applying its own standards, developed in the light of experience and taking into consideration principles applied in the national laws of the contracting states. See also J 5/99, J 7/99.

The legal incapacity had to be of a persistent nature (J ..86 = J 901/86, OJ 1987, 528). For the purposes of R. 90(1)(c) EPC 1973 (R. 142(1)(c) EPC), the EPO must establish whether and if so when the representative was legally incapacitated, and in the light of its findings specify the time limits which might have been interrupted (J ..87 = J 902/87, OJ 1988, 323).

In J 7/99 the Legal Board held that legal incapacity pursuant to R. 90(1)(c) EPC 1973 (R. 142(1)(c) EPC) meant a mental state in which the representative was so totally or nearly totally unable to take rational decisions that all his professional duties, and not just one isolated case, were affected by his mental state. In the case in hand, legal incapacity was not established. See also J 2/98, J 7/16.

In T 315/87 of 14 February 1989 the board accepted that the previous representative had been suffering from physical and mental disorders. Indeed, the medical documents submitted by the previous representative himself pointed to a psychosomatic condition.

In J 7/20 the Legal Board noted that the criteria for interruption of proceedings under R. 142(1)(c) EPC are framed, word for word, as a closed list of triggering events (i.e. grounds): death of the representative; legal incapacity of the representative; prevention of the representative for legal reasons resulting from action taken against his property from continuing the proceedings. The list of interruption-triggering events of proceedings under R. 142(1)(c) EPC is exhaustive. It follows that any other events, including any encompassed by the notion of force majeure, fall outside the scope of this Rule. External, practical and one-off kind of events (inter alia heavy snow, cancelled flights and failed communication) do not constitute "legal incapacity of the representative" under R. 142(1)(c) EPC.

4.6. Legal incapacity of a representative from outside the contracting states

In J 23/88 the Legal Board accepted the finding of the Receiving Section that an American patent attorney was not covered by R. 90(1)(a) EPC 1973 (R. 142(1)(a) EPC), being neither the applicant nor the proprietor of a European patent, nor a person authorised by national law to act on his behalf. "Person authorised by national law" covered legal representatives of the applicant or proprietor, but did not extend to a patent attorney authorised under the laws of a non-Contracting State. However, the board held that the US patent attorney in the case in hand was, at the relevant time, a legally incapacitated representative of the applicant within the meaning of R. 90(1)(c) EPC 1973 (R. 142(1)(c) EPC). This interpretation was fully consonant with the preparatory documents regarding the desirability of equal treatment of applicants from contracting and

non-contracting states. The difference in the wording of R. 90(1)(c) EPC 1973 (R. 142(1)(c) EPC) from that of R. 90(1)(a) EPC 1973 (R. 142(1)(a) EPC) was deliberately chosen so as to create equal treatment between applicants in the contracting and in non-contracting states. The board observed that Art. 133(2) EPC 1973 provided a limited exception to the normal requirement for professional representation within the meaning of Art. 134 EPC 1973 in the case, and only in the case, of the filing of the European patent application. Such a filing could validly be made by the applicant himself or by any representative duly authorised by him. Once the processing of the international application had properly started in the EPO, any interruption in proceedings occasioned by the death or legal incapacity of the American patent attorney would no longer be covered by R. 90(1)(c) EPC 1973.

4.7. Interruption of proceedings because of insolvency (Rule 142(1)(b) EPC)

According to R. 142(1)(b) EPC (R. 90(1)(b) EPC 1973) proceedings before the EPO shall be interrupted in the event of the applicant for or proprietor of a patent, as a result of some action taken against his property, being prevented by legal reasons from continuing the proceedings before the EPO. An interruption under R. 142(1)(b) EPC serves the protection not only of the interests of the patent proprietor but also those of its creditors. This rule protects these interests by preventing any measure with legal effect from being taken, be it by the proprietor or the EPO, that is liable to adversely affect the patent's value as an asset (T. 1389/18). For cases in which an **opponent** requested interruption of proceedings because of insolvency, see T. 1533/07 and T. 516/14 (the application of R. 142(1)(b) EPC to an opponent by analogy is not justified).

In J. 12/19 the board was of the view that, the opponent (appellant) was party to the resumption proceedings. Where opposition proceedings were interrupted and the Legal Division intended to resume proceedings or where it refuses to resume the proceedings, the outcome of the resumption proceedings has an immediate impact on the opponent's legal position. In resumption proceedings, the opponent is party to the main opposition proceedings. Any decision taken in the intermediate resumption proceedings may (adversely) affect the opponent's legal position. The opponent cannot be required to defend its rights only subsequently in the main (opposition) proceedings, after they have been resumed. Such a requirement would delay proceedings and might cause additional costs.

The decisive criterion for interruption under R. 142(1)(b) EPC is whether the action against the property was such as to make it legally impossible for the applicant to continue with the proceedings (J. 26/95, J. 16/05).

In T. 854/12 the board held that R. 142(1)(b) EPC was applicable where a proprietor initially unrestricted in his procedural conduct was later "prevented from continuing the proceedings", but not where a patent was transferred with the administrator's consent to another proprietor who was already insolvent and therefore did not become a party to the proceedings but was instead represented from the outset by the administrator, whose powers of disposal were unlimited.

In J 9/90 the Legal Board held that for R. 90(1)(b) EPC 1973 to be applied in the light of Art. 60(3) EPC 1973 and R. 20(3) EPC 1973, the applicant entered in the Register of European Patents and the insolvent person (here a limited company) had to be legally identical. Cf. J 16/05.

In the cases J 9/94 and J 10/94, it was regarded as being analogous to a case of legal impossibility where the applicant, as a consequence of an action against his property, did not have at his disposal any remaining property by means of which he could have effected the required payment and he was thus, as a result of the action against his property, placed in a situation where it was factually and legally impossible for him to continue the proceedings before the EPO. In such a case it had, however, to be examined whether the actions taken effectively made it impossible for the applicant to continue the proceedings.

In J 18/12 the Legal Board held that the correct interpretation of R. 142(1)(b) EPC required that there be a close relationship between the action taken against the property of the applicant and the condition that this action should be the cause of the applicant being prevented by legal reasons from continuing the proceedings. This requirement of causality would normally only be fulfilled if the "action" was a legal action and was directed against the property of the applicant as a whole, i.e. against the totality of the applicant's assets.

In J 26/95 (OJ 1999, 668) the Legal Board held that, in the absence of specific circumstances, proceedings against the applicant under Chapter 11 of the US Bankruptcy Code did not interrupt proceedings before the EPO within the meaning of R. 90(1)(b) EPC 1973 (R. 142(1)(b) EPC) (see also J 11/98). Being placed under Chapter 11 of the US Bankruptcy Code was an action taken against the property of the debtor. It did not, however, constitute a case where, as a result of such action, it was impossible for the debtor to continue the proceedings before the EPO. On the contrary, it was the very nature of proceedings under Chapter 11 that it was the debtor who continued to act for his business. Chapter 11 bankruptcy proceedings were therefore not comparable to the cases which had been recognised in the case law of the boards of appeal as leading to interruption of proceedings, i.e. where parties had been placed under receivership under French law (J 7/83, OJ 1984, 211) or been declared bankrupt under German law (J 9/90). A situation which could be compared to the exceptional case underlying decisions J 9/94 and J 10/94 (see above) had also not been substantiated.

In J 11/95 the applicant had continued the proceedings before the EPO even after it had gone bankrupt. In particular, it had filed a request for entry into the regional phase before the EPO and paid the corresponding fees. The Legal Board held that from these facts and since no evidence to the contrary had been filed it had to be concluded that the applicant (in bankruptcy) was not prevented by legal reasons from continuing the proceedings before the EPO.

In J 16/05 the Legal Board held that R. 90 EPC 1973 did not provide for any time limit within which the circumstances establishing an interruption of proceedings would have to be brought to the attention of the EPO. The ratio legis of R. 90(1)(b) EPC 1973 was to protect parties not able to act in the proceedings for the defined legal reasons against a loss of rights which would otherwise occur, until such time as the EPO could resume the

proceedings under R. 90(2) EPC 1973. The Legal Board also pointed out that in the interest of legal certainty, R. 90(1)(b) EPC 1973 could not be applied without any time restriction at all. Parties had to act in good faith and in due time and could not have an interruption of the proceedings established years after they had become aware of the facts justifying an earlier interruption. See also T 54/17.

The board in T 54/17 held as follows: if a patent proprietor, despite being aware of circumstances justifying an interruption which were exclusively within their sphere of influence, continued to act in proceedings for years after those circumstances had come to an end without ever invoking them, it would be unfair for them then to invoke an interruption at such a late stage, with the result that the proceedings conducted up to then, in which they had actively taken part, had to be conducted again. That would be at odds with the principle of good faith

4.8. Consequences of interruption of proceedings (Rule 142(4) EPC)

R. 142(4), first sentence, EPC (R. 90(4), first sentence, EPC 1973) states that the time limits in force as regards the applicant for or proprietor of the patent at the time of interruption of the proceedings shall begin again as from the day on which the proceedings are resumed. R. 142(4) EPC includes two exceptions in this respect, namely the time limits for making a request for examination and for paying renewal fees. R. 142(4) EPC does not, however, constitute an exception to the general principle that all time limits are interrupted. Its sole purpose is to specify how time limits are to be calculated when proceedings resume (J 7/83, OJ 1984, 211).

In J 10/19, the Legal Board stated in its catchword that, whereas a finding that proceedings have been interrupted owing to the patent (co-)proprietor's insolvency was usually made retrospectively, it could be reversed only with ex nunc effect. A retrospective reversal was out of the question, even in isolated individual cases after weighing up the interests concerned. It was instead a matter of law that had to be regulated generally.

The board in T 1389/18 (citing J 9/06) observed that proceedings could only be resumed with ex nunc effect.

In J 7/83 (OJ 1984, 211) the Legal Board held that in the event of proceedings for grant of a European patent being interrupted because the applicant company has gone into receivership (R. 90(1)(b) EPC 1973), the period prescribed by Art. 94(2) EPC 1973 for payment of the **examination fee** is suspended as from the date on which payments were discontinued by court order up to the date on which proceedings for grant are resumed (R. 90(2) EPC 1973). The period then resumes for the part remaining to elapse, or for at least the two months prescribed by R. 90(4), second sentence, EPC 1973. In J ..87 (= J 902/87, OJ 1988, 323) the Legal Board stated that such an interpretation could not be applied to **renewal fees**, for which the EPC did not prescribe a time limit for payment but simply dates on which they fell due. The only time limit affecting renewal fees that might be suspended was the six-month period for paying the renewal fee together with an additional fee referred to in Art. 86 EPC 1973. R. 90(4) EPC 1973 had to be interpreted as